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House subdivision bill passes Assembly

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In what supporters say is an effort to address the rising cost of housing in California, the state's legislators voted for a bill this week that would make it easier for property owners to subdivide their single-family lots and build up to two housing units on each, amounting to four total.

Dubbed the California Housing Opportunity and More Efficiency Act, Senate Bill 9 requires cities to approve any proposed housing development containing no more than two residential units within a single-family residential zone without review.

Authored by state Senate leader Toni Atkins (D-San Diego), SB 9 passed the Assembly on Aug. 26 (45-19) and the Senate on Aug. 30 (28-7). It now heads to the desk of the governor, who has not yet indicated his position on the bill.

Voting in opposition were three local Assembly members: Jacqui Irwin, representing Westlake Village; Richard Bloom representing Agoura Hills; and Jesse Gabriel, whose territories include Calabasas.

Irwin told The Acorn she does not support a one-size-fits-all approach to solving what she called "an affordable housing crisis" in the state.

"Requiring cities to approve lot splits completely takes away the local control," Irwin said.

"It doesn't allow for local considerations such as oak tree ordinances, water, traffic, parking. Cities are required to plan for expanded housing, and they should determine that based on local conditions and infrastructure considerations."

State Sen. Henry Stern (D-Calabasas) did not cast a vote. Stern, who is awaiting the birth of his first child, said he had hoped to vote remotely but was denied permission to do so. Had he been allowed, Stern told The Acorn, he would have voted no.

"I didn't support SB 9 the first time around and would not have changed my position this time around had I been afforded the ability to vote," Stern said. "By the way, I was not absent. I was not allowed to remotely participate despite my request to do so out of caution for the impending birth of my first child and the baby's mom, and the state of COVID-19 breakthrough infections in the Capitol."

According to estimates from UC Berkeley's Terner Center for Housing Innovation, the bill could allow an estimated 700,000 additional new units in the state, representing a 40% increase in existing development potential across California's single-family housing parcels.

While some housing advocates and the development/construction sector support the bill, many residents and cities throughout the state aren't so enthusiastic.

A recent David Binder Research poll commissioned by housing rights advocate group Housing is a Human Right showed 63% of those surveyed opposed SB 9.

The City of Calabasas and many of its citizen activists stand strongly opposed to the bill.

"This increased density in residential neighborhoods will affect our quality of life in many ways," Calabasas resident

Joanne Suwara said in a letter to The Acorn.

"With flex alerts to reduce electricity consumption becoming more frequent and notices urging reduction of water consumption during the on-going drought, can the area's resources actually sustain such an increase in population?

"And then there is the inevitable increase in traffic," Suwara said.

The biggest concern among local cities is loss of local control over housing development.

"SB 9 removes such transparency by requiring cities to ministerially approve split lots without (California Environmental Quality Act) evaluation, review by its planning commission and more importantly, local community input," said the City of Thousand Oaks in a letter to the state opposing SB 9.

The bill " will not spur much-needed housing construction in a manner that supports local flexibility, decision making and community input." says the letter signed by T.O. Mayor Claudia Bill-de la Peña.

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